

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	11-07-2026 10:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	11-07-2026 10:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	120 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Steel
विभाग का नाम/Department Name	Rashtriya Ispat Nigam Limited
संगठन का नाम/Organisation Name	Rashtriya Ispat Nigam Limited
कार्यालय का नाम/Office Name	Visakhapatnam Steel Plant
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id : Buyer Email id: buyer2.rinl.ap@gembuyer.in
कुल मात्रा/Total Quantity	8
वस्तु श्रेणी /Item Category	BRG, SPL, COMB AXIAL 4.063, 60mm, 149mm
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	BEARING,SPECIAL TYPE : COMBINED AXIAL ROLLER BEARING DESIGNATION : 4.063 DIAMETER,BORE : 60 mm DIAMETER,OD : 149 mm BEARING FOR DRILL CARRIAGE OF DRILLING MACHINE, BF 1 & 3:
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	Category not available on GeM for the text string uploaded by the buyer
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	- Self-Aligning Roller Bearings - Single Row Deep Groove Ball Bearing (Without Flange Outer Ring) as per IS 6455
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Certificate (Requested in ATC),OEM Authorization Certificate *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer

बिड विवरण/Bid Details	
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	4
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	3
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	2
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	Yes
रिवर्स नीलामी योग्यता नियम/RA Qualification Rule	H1-Highest Priced Bid Elimination
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	3 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
Payment Timelines	Payments shall be made to the Seller within 45 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

आवश्यकता/Required	No
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बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता / MII Purchase Preference

एमआईआई खरीद वरीयता / MII Purchase Preference	Yes
मेक इन इंडिया विक्रेताओं को खरीद में प्राथमिकता, यदि उनका मूल्य L1+X% तक की सीमा में है / Purchase Preference to MII sellers available upto price within L1+X%	20
मेक इन इंडिया खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Maximum Percentage of Bid quantity for MII purchase preference	50

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य L1+X% / Purchase Preference to MSE OEMs/ Service Provider available upto price within L1+X%	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	30

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. Preference to Make In India products (For bids < 200 Crore): Preference shall be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I and Class-II Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate. However, eligible micro and small enterprises will be allowed to participate. The buyers are advised to refer the OM No.F.1/4/2021-PPD dated 18.05.2023 [OM_No.1_4_2021_PPD_dated_18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017 and its subsequent Orders/Notifications issued by concerned Ministry. Benefits of MSE will be allowed only if seller/service provider is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2. Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 30% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

3. Reverse Auction would be conducted amongst all the technically qualified bidders except the Highest quoting bidder. The technically qualified Highest Quoting bidder will not be allowed to participate in RA. However, H-1 will also be allowed to participate in RA in following cases:

- If number of technically qualified bidders are only 2 or 3.
- If Buyer has chosen to split the bid amongst N sellers, and H1 bid is coming within N.
- In case Primary product of only one OEM is left in contention for participation in RA on elimination of H-1.
- If L-1 is non-MSE and H-1 is eligible MSE and H-1 price is coming within price band of 15% of Non-MSE L-1
- If L-1 is non-MII and H-1 is eligible MII and H-1 price is coming within price band of 20% of Non-MII L-1

BRG, SPL, COMB AXIAL 4.063, 60mm, 149mm (8 pieces)

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Shivender Kumar Shukla	530031,ADMINISTRATIVE BUILDING, VISAKHAPATNAM STEEL PLANT	8	90

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

BUYER ADDED BID SPECIFIC ATC (ADDITIONAL TERMS & CONDITIONS)

1.0 BID SECURITY:

The tender shall be considered for evaluation only if "Bid Security Declaration" (In Lieu of Earnest Money Deposit) is submitted as per the format prescribed below.

2.0 PAYMENT TERMS:

100% payment of each item/consignment through RTGS/NEFT shall be made against receipt and acceptance (GARN) of material by RINL on 45th day for non-MSEs, non-local MSEs (21st day for Local MSEs subject to submission of supporting documents), subject to submission of bills to RINL. Any Offer deviating from the above is liable for rejection, since there is no provision of interest loading on prices in GeM.

3.0 Price Firmness: Price shall be quoted in Rs. Per Unit for supply on "FOR VSP Stores" basis (inclusive of Material price, Freight, Packing, transit insurance, taxes / GST, etc.) and the price finalized shall remain firm till completion of supplies.

4.0 QUOTING OF PRICES: On LANDED Cost basis only.

The price to be quoted On LANDED Cost per Metric Ton basis in online should be & FOR Visakhapatnam Steel Plant Stores basis. During the auction, the quoted Lowest LANDED Cost per MT shall flow as start bid price in the Rev E-Auction

5.0 RIGHT TO REVISE THE TENDER QUANTITY: RINL-VSP reserves the right to review and revise the tendered qty. at the time of placement of Letter of Acceptance/Purchase Order (s)/Contract.

6.0 NUMBER OF SOURCES: 01 (ONE)

7.0 Vendors under block in RINL's Material Group 06002 are not eligible to participate in this Bid for the respective items. Offers if any received from such vendors shall not be considered by RINL for evaluation.

8.0 Test Certificate: TC from Govt/Govt approved Lab OR NABL accredited Lab OR Manufacturers own Lab in case of ISO certified Company

9.0 Inspection:

Inspection at supplier's premises i.e Pre Dispatch Inspection, to be carried out by 3rd party agency appointed by Buyer (RINL-VSP).

The supplier shall submit inspection call On-line through the portal (URL:<https://srm.vizagsteel.com>) and shall furnish the inspection call along with all the internal test reports, Test Certificates and Internal Inspection Reports for all parameters as stated in the specification as well as other test certificates specified in the Schedule of Material Cum Specifications at least 15 (fifteen) to 30 days in advance of the scheduled delivery date, to enable VSP to examine the same and issue dispatch clearance/carry out inspection at the suppliers premises and to enable RINL / VSP to carry out the inspection at the supplier premises. Penalty shall be levied in case of false inspection calls and also violation of inspection terms, as per the policy of the Purchaser. The dispatch of stores by the suppliers shall be only after receipt of dispatch clearance or accepted inspection note/ certificate. Inspection & Acceptance of goods shall be as per the offer and agreed parameters during technical clarifications/evaluation. Test certificates and all other documents specified in the enclosed schedule of material-cum-specification are required to be furnished to the Inspector at the time of inspection as well as part of dispatch documents at the time of supply of material.

a. **Inspection Notice:** Where inspection at Supplier's premises is stipulated in the PO, adequate advance notice in writing shall be sent by the Contractor to the Inspection Authority mentioned in the PO intimating that the Stores are ready for inspection with a copy to the officer issuing the PO. On receipt of such notice the Purchaser shall depute the inspecting officer within a reasonable time. However, if the inspecting officer finds that the Stores are not ready for inspection at Supplier's premises as per the aforesaid advance notice, the Purchaser reserves the right to recover the expenses incurred in deputing the inspecting officer.

b. **Facilities for Test and Examination.**

- i. The Contractor shall provide the Inspector at his own expense all reasonable space and facilities for satisfying himself that the Stores are being or have been manufactured in accordance with the specification and for this purpose the Inspector shall have full and free access at any time during the Contract to the Contractor's work premises and may require the Contractor to make arrangements for anything to be inspected at his premises or at any other place and the Contractor shall reserve similar right as regards any sub-contract he may make.
- ii. The Contractor shall also provide and deliver, free of charges at such a place as the Inspector may direct such material as he may require for Tests by analysis (e.g. Chemical, Biological, Pharmacological and by other means of testing commonly in use according to the nature of Stores) or at a place where an independent testing machine is available.
- iii. In case of failure to provide these facilities (in regard to which the Inspector will be the sole judge) at his own premises for making the Tests, the Contractor shall bear the cost of carrying out such Tests elsewhere.
- iv. The inspector shall have the right to conduct any necessary tests to ascertain whether the stores are in accordance with the provided in specification PO. The Contractor shall bear all costs towards testing of Stores unless specifically mentioned in the PO.
- v. The Inspecting Officer shall issue an Inspection Certificate indicating acceptance/rejection of the Stores, as the case may be.
- vi. Wherever inspection at Supplier's premises is stipulated in the PO, Stores shall be delivered or dispatched as per terms of PO only after the Stores have been inspected and Inspection Certificate has been issued by the inspector indicating acceptance.

10.0 Delivery Schedule:

- a. As per Bid Document. However, RINL-VSP reserves the right to revise the delivery schedules, depending on VSP's production requirements and storage capacity, without any change in price, terms and conditions of PO. Part Supplies allowed.
- b. Offers with deviation in Delivery Period shall not be considered.
- c. The tentative schedule at which the supplies should be affected as indicated by RINL-VSP as per Delivery Schedule indicated in GEM Bid Document from the date of receipt of Letter of Acceptance (LOA) / GEM Contract / RINL SAP Purchaser Order(in case GEM contract could not be released in GEM portal for whatsoever the reason), whichever is earlier. Further, RINL-VSP reserves the right to revise the delivery schedules depending on our production requirements and storage capacity, without any additional financial implication to RINL-VSP.
- VSP reserves the right to reject Offers not meeting VSP's Schedule or to consider Offer with best delivery schedule(s).
- d. It may be noted that in the event of an order, delivery shall be the essence of the contract. Further, failure to adhere to the delivery schedules shall attract contractual remedies as per tender terms and conditions.
- e. RINL reserves the right to negotiate with the tenderers without prejudice to their quoted price.
- f. The Purchaser shall have the right to foreclose the contract at any time during the tenure of the Contract without assigning any reason whatsoever by giving advance notice of thirty days to the Supplier of its intention to do so without any claim of damages by the Supplier.

11. LIQUIDATED DAMAGES: Shall be as per GeM GTC: LD Shall be levied as per GeM GTC subject to a maximum of 10% of value of such consignments, excluding Taxes.
To recover from the supplier / contractor , liquidated damages not by way of penalty a sum of 0.5% of the price of any stores which the supplier / contractor has failed to deliver as aforesaid for each week or part of week, during which the delivery of such stores may be in arrears subject to a maximum of 10% of value of such stores/item(s).

12. ESTABLISHMENT OF CREDIBILITY OF NON-ENLISTED/NON-ASSESSED VENDORS: If a tenderer who responds to this Bid is presently not enlisted with RINL-VSP as an approved Vendor in the MGP against which the present tender is issued , and/or those tenderers for whom Vendor Assessment is not done by GeM for the tendered item category, has to upload the following documents in the Offer/Bid in GeM:

- i) Self-certified UDYAM registration certificate for the same/similar tendered item(s) for MSMEs.

(or)

Notarized copy of Certificate of Registration of Shops and Establishments and Letter of authorization from principal manufacturer for a Dealer/Agent/Trader etc.

- ii) Notarized copy of Certificate of Incorporation along with Memorandum and Articles of Association of the Private/Public Limited companies.

(or)

Notarized Copy of Proprietary/Partnership deeds in case of Proprietary/Partnership firms.

- iii) Notarized copy of GST registration certificate and PAN card copy in the name of company in case of Limited companies and Partnership firms or in the name of individuals in case of Proprietary firms.

- iv) Self-attested Financial worth and Audited Financial statements (Balance sheet and profit and loss state

ments) for the last three (3) years.

v) Self-attested copies of Purchase Orders/Contracts for the same or similar tendered item/s.

vi) Self-certified ISO Certificate, if any.

Vendor Assessment Report has to be submitted by the bidders for whom Vendor Assessment is already done by GeM for the Category of tendered item.

Note: In the case of STARTUPS, the STARTUPS have to submit a verifiable certificate of recognition from concerned Govt. Authorities for consideration with respect to Relaxation on prior turnover and prior experience i.e., w.r.to iv) to vi) above. The above is subject to the condition that the firm has the required manufacturing, testing and inspection facilities and the following documents to be submitted:

a) Details of Manpower and Machinery (Self Certified).

b) Details of Testing and Inspection facilities available (Self certified).

However, for the items related to public safety, health, critical security operation and equipment, etc., relaxation shall not be applicable

Kindly note that the above information is required to assess the credibility of the vendor who is not presently enlisted with RINL/VSP as approved vendor for the tendered item/ MGP in which the tender is issued, and/or those tenderers for whom Vendor Assessment is not done by GeM for the Category of tendered item. The tender/Offer of non-enlisted/non-assessed vendor shall be rejected in case of non-submission or in complete submission of the above documents except (vi) or RINL/VSP finds that the credibility of the un-enlisted Vendor is not satisfactory on the basis of the documents furnished. The Vendor shall produce originals of the above documents for verification, if RINL / VSP so desires. RINL / VSP's decision in this regard is final.

Traders/Resellers who would supply the tendered item from a Principal Manufacturer/ shall furnish in original the Letter of Authority from the original manufacture, as per the proforma given below at Annexure-5, specifically authorizing the said supplier to make an offer in response to this Bid. This Letter of Authority should be submitted/uploaded along with Offer/Bid in GeM.

13. PURCHASE PREFERENCE TO MSEs AND MAKE IN INDIA (MII) VENDORS AND OTHER BENEFITS:

a. Purchase preference is accorded to Public Sector Undertakings wherever applicable as per Government policy/ guidelines.

b. Purchase preference is accorded to Local Micro & Small Entrepreneurs (Local MSEs) and non- local MSEs as below, subject to submission of documents as stipulated vide clause above. Further, the tender sets shall be provided free of cost and exemption shall be given from submission of Earnest Money Deposit (EMD) for such MSEs.

c. Local and non-local Micro and Small Enterprises (MSE) those are technically and commercially acceptable shall be considered for extension of purchase preference, where their offer is within 15% of L-1 offer and they match the L-1 offer.

d. The quantity distribution shall be done among the L-1 tenderer and other eligible tenderers (who are in the range of purchase preference and match the L-1 price), as below:

The allocation will be in the descending order with L-1 getting the highest share. Further, Purchase Preference to eligible MSEs & MII tenderers shall be followed as per Clause above. The distribution pattern for splitting the order into 2 / 3 / 4 parties will be broadly as indicated below:

In case of distribution for Ratio for Original Ranking L-1 L-2 L-3 L-4 L-5 L-6 L-7 L-8

Two parties : 70:30 ; Three parties : 60:25:15 ; Four parties : 50:25:15:10

Five parties : 40:25:15:10:10 ; Six parties : 35:20:15:10:10:10

Seven parties : 30:20:10:10:10:10:10; Eight parties : 25:15:10:10:10:10:10:10

However, capability, capacity and past performance will be kept in view for the allocation of quantity to multiple sources. In addition to the above, in case more than one party has the same rank, then their share will be added and equally distributed. For example, if distribution is to be made among six parties and two parties have the same ranking of L-2 i.e. the original rankings are L-1, L-2, L-2, L-3, L-4, L-5, then from the above table, the distribution shall be:

L-1 : 35 %; L-2 : 17.5 % i.e. $(20 + 15)/2 = 17.5$ %; L-2 : 17.5 %; L-3 : 10 %;

L-4 : 10 %; L-5 :

10 %

Similarly, if three parties have the same ranking, viz. L-1, L-1, L-1, L-2, L-3, L-4, then the distribution shall be:-

L-1 : 23.33%, L-2 : 23.33% $(35 + 20+15)/3 = 23.33$ %, L-2 : 23.33%, L-3 : 10 %

L-4 : 10 %, L-5 : 10 %

However, in case of tie among the same ranking parties i.e. in a situation where ranking is L-1, L-1, L-2, L-3, L-3, L-3, L-4, and only four parties are to be considered for placement of order, the distribution shall be L-

3 10% and only one party among the three L-3 parties to be selected through draw of lot in the presence of their representatives.

L-1 : 37.5 %, L-1 : 37.5 % $(50 + 25)/2 = 37.50$ %, L-2 : 15 %, L-3 : 10 %

e. MSE Purchase Preference to eligible tenderers in the order of preference given below (in the order of ranking within each preference category):

a) Local MSEs – Till the total quantity on Local MSEs equals or exceeds 50%

b) MSEs – Till the total quantity on MSEs (including Local MSEs) equals or exceeds 25%.

c) Others

f. Illustrative distribution for quantity distribution based on the above principle is given in our official web site, www.vizagsteel.com à Tenders à MM à Detailed terms and conditions of Invitation to Tender (ITT)

g. Where there is/are eligible Local MSE/s and it is not possible to split the order, 100% of the order quantity shall be placed on the lowest eligible local SSI.

h. Quantity reserved for SC/ST /WOMEN owned MSEs: "Within the 25% of the tendered quantity reserved for MSEs, 4% shall be reserved for MSEs owned by SC/STs and 3% shall be reserved for MSEs owned by WOMEN, who are eligible by being Technically and Commercially acceptable, quoting price in the range of Purchase Preference and matching the L1 price. In the absence of such agencies, the reserved quantity shall be met from other MSEs".

i. The above Purchase Preference clauses are to be read with OM No. F.1/4/2021-PPD dated 18.05.2023 and subsequent amendments if any for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated as MSE by Buyer after evaluation of documents submitted.

14. DEFAULT:

Should the SELLER fail to provide the MATERIAL for delivery by the time or times agreed upon or should the SELLER in any manner or otherwise fail to perform the Contract / Purchase Order or should a receiver be appointed on its assets or make or enter into any arrangements or composition with Creditors or suspend payments (or being a company should enter into liquidation either compulsory or voluntary), the PURCHASER shall have power to declare the Contract / Purchase Order as at an end at the risk and cost of the SELLER in every way. In such a case, the SELLER shall be liable for any expenses, damages or losses which the PURCHASER may incur, sustain or be put to by reason of or in connection with SELLER's default. This Clause is however subject to Force Majeure Clause.

15. RISK PURCHASE:

The time for and the date of delivery of the Stores stipulated in the RFx shall be deemed to be the essence of the contract and delivery must be completed as per delivery schedule specified in the PO. The Contractor shall deliver the Stores at the place specified as per the PO. No Stores shall be deliverable at the Purchaser's Consignee's premises on Sunday and Public Holidays without written permission of the Purchaser. As soon as it is apparent to the Contractor that the delivery dates as stipulated in the contract cannot be met, he should apply for extension of the delivery dates to the Purchaser giving reasons for delay along with supporting documents, if any, and also the date upto which the extension of delivery period is required. The Purchaser will consider such request depending on the nature of the case and either agree for such extension suitably or reject the said request of the Contractor. In case of non supply during the stipulated delivery period, the Purchaser will be free to cancel the Contract or a portion thereof and also purchase stores at the risk and cost of the Contractor. In any case the Contractor shall have no claims whatsoever in respect of cancellation of the contract. The Purchaser reserves the right to cancel the contract or a portion thereof and purchase the stores at the risk and cost of Contractor after giving due notice to the Contractor even before completion of the contractual delivery schedule if it becomes apparent that Contractor will not be able to fulfil the contractual obligations. In case the Contractor fails to complete the supply of stores or a portion thereof within the contractual delivery schedule, the Purchaser has the right to purchase the stores or a portion thereof at the risk and cost of Contractor without serving any notice to the Contractor. In the event of the PURCHASER terminating the Contract / Purchase Order in whole or in part, he may procure, on such terms and in such manner as he deems appropriate, supplies similar to those so terminated and the SELLER shall be liable to the PURCHASER for any excess costs for such similar supplies and/or any loss which the Purchaser may sustain on account of risk purchase, but the Contractor shall not be entitled to any gain on such purchase made against such default. However, in case of part termination of Contract/Purchase Order by the PURCHASER, the SELLER shall continue the performance of the Contract/Purchase Order to the extent it is not terminated under the provisions of this Clause. In the event of cancellation of the contract by Purchaser at the risk and cost of the Contractor, the Contractor shall be liable for any loss which the Purchaser may sustain on account of risk purchase but the Contractor shall not be entitled to any gain on such purchase made against such default. The manner and method of such purchase shall be at the entire

discretion of the Purchaser, whose decision will be final. The Purchaser reserves the right to suspend the business with such Contractors who default in adhering to the contractual delivery schedule, quality of stores etc as per the contract after giving show cause notice to the Contractor and considering his reply if any.

16. RECOVERY OF SUMS DUE:

Whenever under this Contract / Purchase Order any sum of money is recoverable from and payable by the SELLER, the PURCHASER shall be entitled to deduct such sum from any amount then found payable to the SELLER by the PURCHASER or which at any time thereafter may be found to be payable to the SELLER by the PURCHASER under this or any other Contract / Purchase Order with the PURCHASER. Should this sum be not sufficient to cover the full amount recoverable, the SELLER shall pay to the PURCHASER on demand the remaining balance amount. This action shall be without prejudice to the right of the PURCHASER to take legal action against the SELLER for the breach of the Contract / Purchase Order.

17. GENERAL:

The Seller/Contractor shall be entirely responsible for the execution of the Contract in all respects in accordance with the terms and the conditions as specified in the Contract/Purchase Order. Any approval which the Inspector may have given in respect of the Stores (whether with or without the Test carried out by the Contractor or the Inspector) shall not bind the Purchaser and notwithstanding any approval or acceptance given by the Inspector, it shall be lawful for the Purchaser to reject the Stores on arrival at the destination or when put to use if it is found that the Stores supplied by the Contractor are not in conformity with the terms and the conditions of the Contract.

18. TRANSFER AND SUB-LETTING:

The SELLER shall not sublet, transfer, assign or otherwise part with the Contract/ Purchase Order or any part thereof, either directly or indirectly, without the prior written permission of the PURCHASER. In the event of Contractor contravening this condition, the Purchaser shall be entitled to cancel the Contract and to purchase the same or similar Stores elsewhere on the Contractor's account and at his risk and cost.

19. WAIVER:

Failure to enforce any condition herein contained shall not operate as a waiver of the condition itself or any subsequent breach thereof.

20. REVENUE POLICY OF GeM:

Transaction charges shall be levied by GeM as per Revenue Policy of GeM w.e.f. 01.06.2020 available in GeM website under "Terms and Conditions -- Sellers -- Revenue policy of GeM".

21. DOCUMENTS TO BE UPLOADED: Bidder/Seller during bid participation in GeM:

- i) In place of EMD/Bid Bond, the bidders are required to submit/upload "Bid Security Declaration" as per Annexure 1 below, maintaining the verbatim, on firm letter head- VITAL and also the bidder shall submit a documentary proof (viz. certified/true copy of board resolution / power of Attorney etc.) with respect to Legal capacity of person signing the BSD"
- ii) Bid Document along with ATC- as it is -duly signed and stamped on all the pages-VITAL.
- iii) Buyer's Technical specification document-signed and stamped - Vital
- iv) Documents for claiming MSE benefits, in case of MSEs, as per terms & conditions of this Bid.
- v) Credentials of the bidder/seller (who are not enlisted in RINL and not assessed by QCI/GeM for the tendered item as mentioned above) viz., Self-certified Udyam in case of MSME manufacturer, in case of Large scale manufacturer-self declaration of the same, notarized GST, notarized PAN, notarized COI&MOA/Partnership/Proprietorship deed, Authorization certificate from principal manufacturer in case of dealer, self-certified PO copies for tendered item, self-certified audited financial statements for the last 3 years.
- vi) GeM Vendor Assessment report for the tendered item, if applicable.
- vii) Filled in format for Non-Collusive Tendering Certificate as per Annexure-3
- viii) Filled in format for undertaking to be submitted/ uploaded by bidder as per Annexure-4
- ix) Self-certified MII Certificate from clearly indicating the percentage of local content and the details of location at which local value addition made as per Order No.P-45021/2/2017-PP (BE-II) dtd.16.09.2020 from DPIIT, Govt. of India. (In case of a dealer/trader, MII certificate submitted is to be of OEM with local value addition premises as that of OEM's.)

Offers of the bidders who fail to submit the Vital documents are liable for rejection.

22.0 PUNITIVE ACTIONS:

22.1 If it comes to the notice of RINL at any stage from request for enlistment/ tender document that any of the certificates / documents submitted by applicants for enlistment or by bidders are found to be false/ fake/ doctored, the party will be debarred from participation in all RINL tenders for a period of 5 (five) years including termination of contract, if awarded. EMD/ Security Deposit etc. if any, will be forfeited. The contracting Agency in such cases shall make good to RINL any loss or damage resulting from such termination. Contracts in operation anywhere in RINL will also be terminated with attendant fall outs like forfeiture of EMD/ Security Deposit, if any, and recovery of risk and cost charges etc. Decision of RINL Management will be final and binding.

22.2 In case the commercially and technically acceptable lowest price offered tenderer backs out after ten

der is opened in single bid tender and in two bid tender after commercial bid / price bid is opened ; or after finalization of contract punitive actions shall be as per prevailing guidelines which include:

(a) If any tenderer backs out after opening of the Techno-commercial bids but, prior to Reverse e-auction and opening of the sealed price bids, they shall be kept under hold without issue of tender enquiries for the next '1' tender or '3' months whichever is later.

(b) If the 'L1' tenderer backs out after opening of the tenders in case of single bid cases (or) after the Reverse e-auction / opening of the sealed price bids in case of 2-bid cases and within the validity period, they shall be kept under hold without issue of tender enquiries up to next one year including barring participation in open tenders.

(c) If the 'tenderer backs out after award of the Contract, they shall be kept under hold without issue of tender enquiries up to next one year including barring participation in open tenders, apart from proceeding with alternative procurement action (re-tendering) at the risk & cost of the defaulting supplier

23.0 All other terms and conditions shall be as per RINL-VSP's General Conditions of Contract (GCC) for supply and Detailed Terms and Conditions (DTC) of Invitation To

Supply Tender which are available in our website www.vizagsteel.com (under Tenders > MM). Any Contradiction between the terms in this Bid document (incl ATC), GCC and DTC, the terms in this Bid document shall prevail to the extent of such contradiction.

ANNEXURE-1 [Additional Doc 1 (Requested in ATC)]

FORMAT FOR UNDERTAKING TO BE SUBMITTED/ UPLOADED BY BIDDER ALONG WITH THE TENDER DOCUMENTS

I (Name and Designation) appointed as the attorney/authorized signatory of the bidder (including its constituents)

M/s.....(herein after called the bidder) for the purpose of the Tender Documents for..... as per the tender No. of (RINL), do hereby solemnly affirm and state on the behalf of the bidder including its constituents as under:

1. I/We the bidder(s) am/are signing this document after carefully reading the contents of the above mentioned tender.
2. I/We declare and certify that I /we have not made any misleading or false representation anywhere in the tender submitted including the annexure thereto.
3. I/We also understand that my/ our offer will be evaluated based on the documents/ credentials submitted along with the offer and same shall be binding upon me/us.
4. I/We declare that the information and documents submitted along with the tender documents by me/ us are complete and correct and I /we are fully responsible for the authenticity and correctness of the information and documents, submitted by us.
5. I/We understand that at any time during process for evaluation of tenders, if any information /document submitted by me / us are found to be suppressing facts/forged/ false / fabricated / fudged or incorrect, it shall lead to forfeiture of the EMD, if submitted, besides banning under the extant Guidelines for Banning of Business Dealings of RINL and initiating any legal action as deemed fit by RINL. Further, I/we (Name of the Bidder) and all my/our constituents understand that my/our offer shall be summarily rejected.
6. I/We also understand that at any time after award of contract, if the certificate(s) submitted by me/us are found to be suppressing facts/false/forged/fabricated/fudged or incorrect, it may lead to termination of the contract, along with forfeiture of EMD / SD and Performance Guarantee if submitted, besides any other action provided in the contract including banning under the extant Guidelines for Banning of Business Dealings of RINL and initiating any legal action as deemed fit by RINL.

(SEAL AND SIGNATURE OF THE BIDDER)

Place: Date:

ANNEXURE-2 [Additional Doc 3 (Requested in ATC)]

BID SECURITY DECLARATION (TO BE FURNISHED AS
(In Lieu of EMD)

Tender/Bid No: Dated: (dd-mmm-yyyy)

I/We have understood that, according to the conditions of Tender document, bids must be supported by a

Bid Security Declaration(BSD).Accordingly,I am/We are submitting this "Bid Security Declaration" as follows :

I/We accept that,I/We will automatically be debarred from participation in all future tenders of RINL for a period of THREE(3) years and also already submitted bids (if any) shall not be considered for further evaluation, in case of any of the following:

- (a) If I/we withdraw/modify our Bid after tender opening and during the period of bid validity stipulated in the tender document or any extension thereof-
- Or
- (b) Having been notified of the acceptance of our Bid by RINL, during the period of bid validity, if, I/We
 - (i) Fail or refuse to execute the Contract.(or)
 - (ii) Fail or refuse to furnish the security deposit, as stipulated in the Tender Document/Work Order/ Letter of Acceptance/ Purchase Order.

[Signature]

In the capacity of:

[Legal capacity of person signing the Bid Security Declaration]

The bidder shall submit a documentary proof (viz. certified/true copy of board resolution/Power of Attorney etc.) with respect to Legal capacity of person signing the BSD.

Name:

[Complete name of person signing the Bid Security Declaration]

Duly authorized to sign the bid for and on behalf of: [Complete name of Bidder and Address] Date: [Date of signing]

Corporate Seal: (wherever applicable)

Witness:

[Signature of person with name and address]

Note: In case of a Joint Venture/Consortium, wherever allowed the BSD must be in the name of all partners to the Joint Venture / Consortium that submits the bid.

ANNEXURE-3 [Additional Doc 2 (Requested in ATC)]

FORMAT NON-COLLUSIVE TENDERING CERTIFICATE

(To be signed by an authorized person on the Tenderer's behalf)

To
RINL-VSP.

Dear Sir/Madam,

Non-Collusive Tendering Certificate for {RFQ/Tender No. ()} Date ()

1. We, (name(s) of the tenderer(s)) of (address(es) of the tenderer(s)) refer to the bid/offer against the "Tender".

2. Non-collusion

We represent and warrant that in relation to the Tender:

- (a) Our bid was developed genuinely, independently and made with the intention to accept the Contract if awarded;
- (b) Our bid was not prepared with any agreement, arrangement, communication, understanding, promise of undertaking with any person (including any other tenderer or competitor) regarding:
 - i) Prices;

- ii) Methods, factors or formulas used to calculate prices;
- iii) An intention or decision to submit a bid;
- iv) An intention or decision to withdraw a bid;
- v) The submission of bid that does not conform with the requirements of the tender;
- vi) The quality, quantity, specifications or delivery particulars of the products or services to which this tender relates; and
- vii) The terms of the bid, and we undertake that we will not, prior to the award of the Contract, enter into or engage in any of the foregoing.

3. Disclosure of in case of Job/Project Contracts

We understand that we are required to disclose all intended sub-contracting arrangements relating to the Tender to the RINL, Place -----, including those which are entered into after the Contract is awarded. We warrant that we have duly disclosed and will continue to disclose such arrangements to the RINL, Place -----.

4. Consequences of breach or non-compliance

We understand that in the event of any breach or non-compliance with any warranties or undertakings in this certificate, the RINL, Place ----- may, at its discretion, invalidate our bid, exclude us from future tenders, pursue damages or other forms of redress from us (including but not limited to damages for delay, costs and expenses of re-tendering and other costs incurred), and /or (in the event that we are awarded the Contract) terminate the Contract.

Signed for and on behalf of the (tenderer) Signature:

Name: Position:

Date:

Note:

Para 2(b) is not applicable to Agreements, arrangements, communications, understandings, promises or undertakings with:

- (a) RINL, Place;
- (b) A joint venture partner, where joint venture agreements, arrangements, relevant to the bid exist and which are notified to the RINL, Place ;
- (c) Consultants or sub-contractors, provided that the communications are held in strict confidence and limited to the information required to facilitate that particular consultancy arrangement or sub-contract;
- (d) Professional advisers, provided that the communications are held in strict confidence and limited to the information required for the adviser to render their professional advice in relation to the Tender;
- (e) Insurers or brokers for the purpose of obtaining an insurance quote, provided that the communications are held in strict confidence and limited to the information required to facilitate that particular insurance arrangement; and
- (f) Banks for the purpose of obtaining financing for the contract, provided that the communications are held in strict confidence and limited to the information required to facilitate that financing.

ANNEXURE-4

Illustrative Example (in case of divisible items, and where No. of sources as per ATC is Two)

Sl.No	Scenario	Quantity distribution
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1) Where L1 is "MSE & Class-1 MII Supplier"

1.1 Where L1 is both Local MSE & Class-1 MII Supplier 70%-L1 Local MSE & MII Cls1 30% - Others

1.2 Where L1 is both AI MSE & Class-1 MII Supplier

A) In case there is/are eligible Local MSE/s If Local MSE is Class-1 MII If Local MSE is Non-MII Class-1

70% - Local MSE Cls1 30%-L1 AIMSE & MII Cls1 50%-Local MSE

50%-L1 AIMSE & MII Cls1

B) In case there is no eligible Local MSE 70%-L1 AIMSE & MII Cls1 30%- Others

2) Where L1 is "Non-MSE but Class-1 MII Supplier"

A) In case there is/are eligible Local MSE/s If Local MSE is Class-1 MII If Local MSE is Non-MII Class-1

70%-Local MSE Cls1 30%-L1 MII Cls1 & Non-MSE

50%-Local MSE 50%-L1 Non-MSE & MII Cls1

B) In case there is no eligible Local MSE but there is/are eligible AIMSE/s 70%-L1 MII Cls1 & Non-MSE

30%-AIMSE (either MII or Non-MII Cls1)

C) In case there is no eligible Local MSE or AIMSE 70%-L1 MII Cls1 & Non-MSE

30%- Others

3) Where L1 is "MSE but Non-Class-1 MII Supplier"

3.1 Where L1 is Local MSE but Non-Class-1

A) In case there is/are eligible MII Class-1 50%-L1 Local MSE
50%-MII Class-1

B) In case there is/are no eligible MII Class-1 70%-L1 Local MSE
30%- Others

3.2 Where L1 is AIMSE but Non-MII Class-1

A) In case there is/are eligible Local MSE/s and there is/are other eligible MII Class-1/s If Local MSE is Class-I MII If Local MSE is Non-MII Class-1

70%-Local MSE & Cls1 MII
30%-L1 AIMSE & Non-MII 50%-MII Cls1

25%-Local MSE & Non-Cls1

25%-L1 AIMSE & Non-MII

B) In case there is/are eligible Local MSE/s but there is/are no eligible MII Cls1/s 70%-Local MSE & Non-MII Cls1 30% - L1 AIMSE & Non-MII Cls1

C) In case there is no eligible Local MSE but there is eligible MII Cls1 50%-MII Class-1
50%-L1 AIMSE & Non-MII Cls1

D) In case there is no eligible Local MSE and no eligible MII Cls1 local 70%-L1 AIMSE & Non-MII Cls1
30%- Others

4) Where L1 is "Non-MSE & non-MII Class-1 Supplier"

A) In case there is/are eligible Local MSE/s and there is/are eligible MII Cls1 local If Local MSE is Class-I MII If Local MSE is Non-MII Class-1

70%-Local MSE & Cls1 30% - L1 Non-MSE &

Non-MII Cls1 50%-Local MSE & Non-Cls1

25%-MII Cls1

25%-L1 Non-MSE &

Non-MII Cls1

B) In case there is/are eligible Local MSE/s but no eligible MII Cls1 70%-Local MSE

30%-L1 Non-MSE & Non-MII Cls1

C) In case there is no eligible Local MSE but there is/are eligible AIMSE/s and there is/are eligible MII Cls1

If AIMSE is Class-1 MII If AIMSE is Non-MII Class-1

50%-AIMSE & Cls1

50%-L1 Non-MSE &

Non-MII Cls1 25%-AIMSE & Non-MII

Cls1

37.5%-MII Class-1

37.5%-L1 Non-MSE &

Non-MII Cls1

D) In case there is no eligible Local MSE but there is/are eligible AIMSE/s & no eligible MII Cls1 30%- AIMSE

70%-L1 Non-MSE & Non-MII Cls1

E)) In case there is no eligible Local MSE or AIMSE but there is eligible MII Cls1 50%-MII Class-1

50%-L1 Non-MSE & Non-MII Cls1

F) In case there is no eligible Local MSE and no eligible AIMSE or MII Cls1 70%-L1 Non-MSE & Non-MII Cls1

30%- Others

- MSE: Micro and Small Enterprise
- Class-1: Make in India Class-1 Supplier
- AIMSE: All India MSE

Where one source is originally envisaged; but it is possible to split the order (i.e. items/quantity is divisible) and award quantity to a second source based on Purchase Preference, the distribution pattern of 2 sources will be followed.

Note:

1) Others including Non-MSE/s and MSE/s

2) In case the quantity offered to Local MSE or MSE as per distribution table do(es) not match the L-1 price, the quantity will be offered to others in order of their ranking.

Annexure-5

LETTER OF AUTHORITY FROM THE ESTABLISHED MANUFACTURER ON COMPANY LETTER HEAD (IN CASE T

HE BIDDER IS A DEALERS/TRADER)

Ref: Date:

To,

M/s Rashtriya Ispat Nigam Ltd., Visakhapatnam Steel Plant, Purchase Department,
Main Administrative Building, Visakhapatnam - 530 031

Attn: (Name of the Dealing Officer)

AUTHORISATION CERTIFICATE

Dear Sir,

Sub: Authority Letter Against

ITT No.Dt. Due on Item/s quoted

.....
We who are established and reputed manufacturers of
.....having factory at..... hereby authorize M/s (name and
address of agent/dealer/stockist/distributor) to Bid, negotiate and conclude the contract with you against a
bove ITT No. for the above mentioned goods manufactured by us.

No company or firm or individual other than M/s are authorized to Bid, negotiate and conclude
the contract in regard to this business against this specific tender.

The agency commission of ...(*1).. % included in the gross FOR/ex-works/FOB/CIF/others (to be specified)(*
2) price is payable to M/s in Indian Rupees. / No agency commission is payable to M/s

We hereby extend our full guarantee /warranty as per your clause at SI No ..(*3).. of the General Condition
s of Contract for the goods offered against this Invitation to Tender, by the above firm.

We also confirm that the spares and any other miscellaneous items(as applicable), of the equipment quot
ed will be freely available for at least five years after expiry of warranty/ guarantee period.

Our other responsibilities are as follows:

Information regarding the name of new agent/dealer/stockist/distributor, in case of change. Other responsi
bilities :

(To specify, if any)

Our agent/dealer/stockist/distributor's responsibilities are as follows:

(To specify, if any)

Yours faithfully,

(Name of Manufacturer) For and on behalf of M/s

(Name of Manufacturer & Signatory)

Note: a) Whenever OEMs authorize their (agent/dealer/stockist/distributor) to quote against the tender, the
y shall submit an authorization certificate as per the format given above. This certificate of authorization s
hould be submitted on the letter head of the manufacturing concern and should be signed by a person on
behalf of the manufacturer, who is competent to authorize the agent/dealer/stockist/distributor. If the auth
orization certificate is not furnished as per the above format, the tender shall be liable for rejection.

b) (*1) To strike out whichever is not applicable. If agency commission is payable % is to be furnished.

c) (*2)To indicate exact basis of offer - FOR/ex-works/FOB/CIF/others (to be specified)

(*3) To fill in the relevant clause of the applicable GCC as per the scope of tender i.e. Supply/Supply & Insta
llation/Supply& Application/Supply & Supervision/Supply & Erection /others - to specify.

IT IS MANDATORY TO SUBMIT DULY ATTESTED BID ATC DOCUMENT,ANNEXURE 1,2 & 3 OF THE BID ATC. A
NNEXURE 1,2 & 3 OF THE BID ATC ARE TO BE PROVIDED ON THE LETTER HEAD OF THE BIDDER COMPANY
WITH EVERY DETAIL FILLED.

THIS BID ATC SUPERSEDES GEM BID GTC.

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their
Competent Authority. The Buyer ,is solely responsible for the impact of these clauses on the bidding process, its
outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs
and including the modification of technical specifications and / or terms and conditions governing the bid.All
representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly
and not with GeM.If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid &

resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-

compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---